

DIRECT SELLING AGENT (DSA) LOAN AGENT/CONNECTOR APPOINTMENT AGREEMENT

CONFIDENTIAL DOCUMENT — FOR INTERNAL & EXECUTION USE ONLY

This Direct Selling Agent (DSA)/Loan Agent/Connector Appointment Agreement is executed and made effective on the date mentioned in Part A below, in accordance with Section 10 of the Indian Contract Act, 1872 and Section 10A of the Information Technology Act, 2000 (which recognises the validity of contracts formed and authenticated through electronic means), by and between:

HandToHand Loans, a business engaged in loan distribution, financial services, customer acquisition and allied lending-support activities, having its registered/business office as per its official records (hereinafter referred to as the “Company”, which expression shall, unless repugnant to the context, include its successors, assigns, affiliates and authorised representatives);

AND

The individual/proprietorship/partnership/entity whose particulars are set out in Part A below (hereinafter referred to as the “Agent” or “DSA”, which expression shall, unless repugnant to the context, include their legal heirs, successors and permitted assigns).

Statutory Reference: *This Agreement is governed by the Indian Contract Act, 1872; the Reserve Bank of India (Digital Lending) Directions, 2025; the Digital Personal Data Protection Act, 2023; the Information Technology Act, 2000 (as amended); the Bharatiya Nyaya Sanhita, 2023; the Consumer Protection Act, 2019; and the Arbitration and Conciliation Act, 1996, as detailed in the relevant clauses below.*

PART A — AGENT/DSA/CONNECTOR DETAILS

Agreement Date	
Agreement No.	
Agent / DSA Name	
PAN Number	
Aadhaar Number (masked)	
Business / Firm Name	
Registered / Residential Address	
Mobile Number	
Email Address	
Bank Account Details (for commission payout)	
Joining Date	
Agreement Term	One (1) Year from the Agreement Date, unless renewed or terminated earlier

PART B — TERMS & CONDITIONS

1. APPOINTMENT & STATUS OF THE AGENT

The Company hereby appoints the Agent as a Non-Exclusive Direct Selling Agent (DSA) / Lending Service Provider (LSP)-affiliated connector for the purpose of sourcing prospective customers for various loan products offered through HandToHand Loans and its partner Regulated Entities (banks/NBFCs), in accordance with the Reserve Bank of India (Digital Lending) Directions, 2025 and the RBI Master Direction on Outsourcing of Financial Services.

The Agent shall act strictly as an Independent Contractor and shall not, under any circumstances, be deemed or construed to be an employee, partner, co-venturer, legal representative, or agent (in the legal sense of agency under Chapter X of the Indian Contract Act, 1872) of the Company for any purpose, including taxation, labour law, or provident fund obligations.

The Agent SHALL:

- Source eligible prospective loan customers in a fair, transparent and non-coercive manner.
- Assist customers in accurately completing loan applications.
- Help customers upload and submit the required KYC and supporting documents.
- Coordinate communication between the customer and the Company / lending institution.
- Ensure the customer is shown the Key Fact Statement (KFS) and relevant disclosures issued by the lending institution before the loan offer is accepted, in line with RBI's KFS norms under the RBI (Digital Lending) Directions, 2025.

The Agent shall NOT:

- Approve, sanction, reject, or disburse any loan.
- Commit any approval, rate, or term on behalf of the Company or the lending institution.
- Sign any loan document, agreement, or undertaking on behalf of HandToHand Loans.
- Collect, hold, or route any loan disbursement or repayment amount through a personal or third-party pass-through account — disbursement and repayment must flow directly between the Regulated Entity and the borrower, as mandated under the RBI (Digital Lending) Directions, 2025.
- Represent itself as an employee, officer, or decision-making authority of the Company.

All lending, underwriting, sanction, and disbursement decisions shall remain solely and exclusively with the lending institution / Regulated Entity and/or the Company, as applicable.

Statutory Reference: Reserve Bank of India (Digital Lending) Directions, 2025 (effective 8 May 2025), read with the RBI Guidelines on Managing Risks and Code of Conduct in Outsourcing of Financial Services; and Chapter X of the Indian Contract Act, 1872 (Law of Agency).

2. COMMISSION & PAYOUT

The Agent shall be entitled to commission only upon the successful disbursement of the loan directly into the borrower's verified bank account by the Regulated Entity, and not otherwise.

No commission shall be payable merely for:

- Lead generation.
- Customer registration.
- Application submission.
- Document collection.
- Loan approval.
- Loan sanction (without disbursement).

Commission shall become payable only after:

Commission shall be processed by the Company on a **monthly cycle basis**.

Commission shall accrue only for those cases where **successful and complete loan disbursement** has been made by the Regulated Entity directly into the borrower's **verified bank account**.

Such disbursement must be accompanied by completion of **KYC verification** as per RBI/PMLA norms, and compliance with the **RBI (Digital Lending) Directions, 2025**.

The monthly cycle shall run from the **1st (first) day to the last day** of the calendar month (both days inclusive).

Commission for that month shall be paid to the Agent between the **1st (first) and 5th (fifth) day** (both days inclusive) of the immediately succeeding month.

The **5th (fifth) day** of the succeeding month shall be the **final and outer date** for crediting such commission to the Agent's registered bank account.

Holiday Adjustment: If the 5th falls on a Sunday, a declared bank holiday, or any non-business day for the Company or the Regulated Entity, the commission shall be credited on the **immediately preceding business day**, and this shall be deemed to be within the timeline.

Cases Under Verification/Dispute: If any case is under verification, audit, compliance review, or bona fide dispute as on the last day of the month, that case's commission shall **not** be part of that month's payout — it shall carry forward to the payout cycle of the month in which the matter is resolved in the Agent's favour.

The Company reserves the right to revise the commission structure at its sole discretion by providing the Agent prior written notice of not less than fifteen (15) days. Where fraud, forged documents, policy violations, misselling, or misrepresentation by the Agent is detected, the Company may withhold, adjust, set-off, or recover any pending or future commissions, without prejudice to its other legal remedies, including criminal action under the Bharatiya Nyaya Sanhita, 2023.

All commission payouts shall be subject to deduction of tax at source (TDS) under the Income-tax Act, 1961, and applicable Goods and Services Tax (GST) compliance under the Central Goods and Services Tax Act, 2017, as may be applicable to the Agent.

Statutory Reference: RBI (Digital Lending) Directions, 2025; Prevention of Money Laundering Act, 2002 (PMLA) and Rules thereunder; Income-tax Act, 1961; and the Central Goods and Services Tax Act, 2017.

3. EMI FOLLOW-UP RESPONSIBILITY

After successful loan disbursement, the Agent shall maintain reasonable customer follow-up for a period of six (6) months from the date of the first Equated Monthly Instalment (EMI), strictly within the bounds of the RBI's Fair Practices Code and the conduct norms applicable to recovery-related communication.

The Agent shall:

- Explain the EMI schedule to the customer.
- Inform the customer about repayment dates.
- Remind customers regarding upcoming EMI payments through fair and non-coercive communication.
- Immediately inform the Company of any indication or likelihood of default.
- Cooperate with the Company / Regulated Entity in customer communication relating to repayment, without holding out as an authorised recovery agent unless separately appointed and disclosed to the borrower in advance, as required under the RBI (Digital Lending) Directions, 2025.

For the avoidance of doubt, the Agent shall not be personally liable to pay the customer's EMI or any outstanding loan amount, and shall not use any threat, coercion, undue harassment, or misrepresentation while communicating with customers, failing which the Agent may additionally be liable under the provisions of the Bharatiya Nyaya Sanhita, 2023 relating to criminal intimidation and harassment.

Statutory Reference: RBI (Digital Lending) Directions, 2025 (recovery-agent disclosure and fair-conduct norms); Bharatiya Nyaya Sanhita, 2023, Section 351 (criminal intimidation).

4. CUSTOMER CHARGES & UNAUTHORISED COLLECTIONS

The Agent shall not collect, demand, or receive any unauthorised fee, processing charge, commission, security deposit, membership fee, or any other amount from customers in the name of HandToHand Loans or any partner Regulated Entity, unless expressly authorised in writing by the Company.

Any unauthorised collection of money shall constitute serious misconduct and may result in:

- Immediate termination of this Agreement.
- Cancellation and recovery of pending and future commissions.
- Recovery of losses caused to the Company, customers, or the Regulated Entity.
- Criminal action for cheating and dishonest inducement under Section 318 of the Bharatiya Nyaya Sanhita, 2023, and/or for criminal breach of trust, in addition to civil proceedings under applicable law.

- Reporting to the relevant Regulated Entity and, where applicable, to the RBI's Complaint Management System (CMS) / Sachet Portal.

Statutory Reference: *Bharatiya Nyaya Sanhita, 2023, Section 318 (cheating) and provisions relating to criminal breach of trust; RBI (Digital Lending) Directions, 2025 (grievance-redressal and Sachet Portal escalation).*

5. AGENT RESPONSIBILITIES & STANDARDS OF CONDUCT

The Agent shall:

- Follow all applicable Indian laws, rules, and regulatory requirements at all times.
- Follow RBI guidelines, directions, and circulars wherever applicable, including the RBI (Digital Lending) Directions, 2025.
- Maintain accurate and complete customer records.
- Submit documents honestly and verify their authenticity before submission.
- Maintain professional conduct in all customer and Company interactions.
- Protect customer interests and act in good faith at all times.
- Immediately report any suspicious, fraudulent, or non-compliant activity to the Company.

The Agent shall not:

- Submit fake, forged, or fabricated documents.
- Forge signatures of customers, Company officials, or any third party.
- Mislead customers regarding loan terms, eligibility, or approval likelihood.
- Give false promises regarding loan approval, interest rates, or disbursement timelines.
- Misrepresent Company policies, products, or affiliations.

Any act of forgery, fabrication of documents, or impersonation by the Agent shall attract liability under the Bharatiya Nyaya Sanhita, 2023 (offences relating to forgery and false documents) and the Bharatiya Sakshya Adhinyam, 2023 (admissibility of electronic and documentary evidence in any resulting proceedings), in addition to termination of this Agreement.

Statutory Reference: *Bharatiya Nyaya Sanhita, 2023 (offences of forgery, cheating and impersonation); Bharatiya Sakshya Adhinyam, 2023 (evidentiary value of electronic records).*

6. CONFIDENTIALITY & DATA PROTECTION

The Agent shall maintain strict confidentiality of all customer and Company information that comes into its possession in the course of this engagement, including but not limited to:

- Customer information, PAN, Aadhaar, bank statements, income documents and other personal/financial data.
- Login credentials, system access codes, and digital lending application (DLA) credentials.
- Internal pricing, commission structures, and business strategy.
- Any other confidential or proprietary business information of the Company.

The Agent acknowledges that all customer personal data collected, processed, or accessed in the course of this Agreement constitutes “personal data” under the Digital Personal Data Protection Act, 2023 (“DPDP Act”), and the Agent shall act strictly as a person processing data on behalf of, and under the instructions of, the Company (as Data Fiduciary). The Agent shall:

- Collect and process personal data only for the specific, lawful purpose of loan facilitation, and only with the informed consent of the customer.
- Not retain, copy, transfer, or use customer personal data for any purpose beyond the scope of this Agreement.
- Not store or transmit customer personal data outside India except as permitted by the Company and in compliance with the DPDP Act, 2023.
- Immediately notify the Company of any actual or suspected personal data breach, to enable the Company to comply with its breach-notification obligations under the DPDP Act, 2023.
- Delete or render inaccessible all customer personal data in its possession immediately upon termination of this Agreement or completion of the purpose for which it was collected, whichever is earlier.

The confidentiality and data-protection obligations under this Clause shall survive termination of this Agreement. Unauthorised disclosure, misuse, or breach of customer data may result in civil liability, regulatory action by the Data Protection Board of India under the DPDP Act, 2023, and criminal prosecution under the Information Technology Act, 2000 and the Bharatiya Nyaya Sanhita, 2023.

Statutory Reference: *Digital Personal Data Protection Act, 2023; Information Technology Act, 2000, Sections 43A and 72A (compensation and punishment for breach of data/privacy); Bharatiya Nyaya Sanhita, 2023.*

7. CODE OF CONDUCT

The Agent shall:

- Behave professionally and courteously with all customers.
- Treat customers fairly and without discrimination.
- Avoid misleading advertisements or promotional claims.
- Avoid false commitments regarding loan products or outcomes.
- Maintain and safeguard the reputation, brand, and goodwill of HandToHand Loans.

The Company may terminate this Agreement immediately, without notice, if the Agent's conduct damages or is reasonably likely to damage the Company's reputation, brand, or relationships with its partner Regulated Entities.

8. TERM & TERMINATION

This Agreement shall remain valid for one (1) year from the date of execution and may be renewed by mutual written consent of both parties. Either party may terminate this Agreement by giving thirty (30) days' prior written notice to the other party.

The Company may terminate this Agreement immediately, without notice, in case of:

- Fraud, cheating, or misrepresentation by the Agent.
- Data theft, breach of confidentiality, or use of forged documents.
- Any breach of the terms of this Agreement.
- Customer complaints involving misconduct, harassment, or unauthorised collection.
- Violation of Company policies, RBI guidelines, or applicable law.

Upon termination, for any reason whatsoever, the Agent shall immediately cease using the Company's name, logo, branding, systems, login credentials, and marketing materials, and shall return or destroy (and certify destruction of) all confidential information and customer data in its possession, in accordance with Clause 6 above.

9. INDEMNITY

The Agent agrees to indemnify, defend, and keep the Company (and its officers, directors, employees, and partner Regulated Entities) fully indemnified and harmless against any and all claims, damages, losses, penalties, regulatory fines, legal expenses, or liabilities arising out of or in connection with the Agent's negligence, fraud, misconduct, breach of this Agreement, or violation of applicable law, including any liability or penalty (up to ₹1 crore or as may be prescribed) imposed on the Company under the RBI (Digital Lending) Directions, 2025 on account of the Agent's acts or omissions.

10. INTELLECTUAL PROPERTY

All trademarks, trade names, logos (including the “HandToHand Loans” name and logo), software, branding, websites, customer databases, and marketing materials used by the Company remain the exclusive intellectual property of HandToHand Loans, protected under the Trade Marks Act, 1999 and the Copyright Act, 1957, as applicable. The Agent shall not copy, reproduce, modify, or otherwise misuse any Company intellectual property without the Company's prior written permission, and any such unauthorised use may attract civil and criminal liability, including under the Bharatiya Nyaya Sanhita, 2023.

11. DATA PRIVACY & DIGITAL LENDING COMPLIANCE

In addition to the obligations under Clause 6, the Agent shall comply with all applicable data-protection and digital-lending norms, including the Digital Personal Data Protection Act, 2023, the Information Technology Act, 2000 (and the rules made thereunder, including the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011), and the RBI (Digital Lending) Directions, 2025. Customer information shall be used strictly for authorised business purposes connected with this Agreement and for no other purpose.

The Agent shall not access, on behalf of any Digital Lending App (DLA), any mobile-device resource of the customer (such as files, media, contact lists, call logs, or telephony functions) except with the

customer's explicit, informed, and need-based consent, in line with RBI's data-minimisation norms under the RBI (Digital Lending) Directions, 2025.

12. LEGAL JURISDICTION

Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts situated at Agra/Firozabad, Uttar Pradesh, India. This clause is subject to the arbitration mechanism set out in Clause 13."

13. GOVERNING LAW & DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of India, including the Indian Contract Act, 1872. The parties shall first attempt to resolve any dispute, controversy, or claim arising out of or in connection with this Agreement amicably through good-faith negotiation. If such dispute remains unresolved within thirty (30) days, it shall be referred to and finally resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996 (as amended), by a sole arbitrator appointed by the Company. The seat and venue of arbitration shall be decided by the Company, unless otherwise mutually agreed in writing, and the arbitral proceedings shall be conducted in English.

Subject to the arbitration clause above, the courts at the place decided by the Company shall have exclusive jurisdiction over any matter not capable of being referred to arbitration. Nothing in this Clause shall preclude the Company from pursuing criminal remedies under the Bharatiya Nyaya Sanhita, 2023 and the Bharatiya Nagarik Suraksha Sanhita, 2023 in respect of any fraudulent or criminal act by the Agent.

Statutory Reference: *Arbitration and Conciliation Act, 1996 (as amended by the Arbitration and Conciliation (Amendment) Acts of 2015, 2019 and 2021); Bharatiya Nagarik Suraksha Sanhita, 2023 (criminal procedure).*

14. STAMP DUTY & ELECTRONIC EXECUTION

This Agreement shall be subject to applicable stamp duty under the Indian Stamp Act, 1899. Where this Agreement is executed electronically, such execution and the electronic/digital signatures of the parties shall be valid and legally binding under Section 10A and Section 3A of the Information Technology Act, 2000, and shall be admissible as evidence under the Bharatiya Sakshya Adhiniyam, 2023.

15. ENTIRE AGREEMENT & AMENDMENT

This Agreement, along with Part A and any annexures, constitutes the complete and entire understanding between the Company and the Agent in relation to its subject matter, and supersedes all prior discussions, representations, or agreements, whether oral or written. No verbal communication shall modify, waive, or supersede this Agreement. Any amendment shall be valid and

binding only if made in writing and signed valid electronic signature by authorised representatives of both parties.

PART C — EXECUTION AND SIGNATURES

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of the date first written above. Both parties confirm they have read, understood, and agree to be bound by all terms and conditions set forth herein.

HandToHand Loans

Authorised Signature



Name & Designation

SIDDHANT SAGAR

Chief Executive Officer (CEO)



This is a computer-generated authorized stamp of HandToHand Loans and does not require any additional signature or manual authorization.

Loan Agent/Connector/DSA Partner

Loan Agent/Connector/DSA Signature

Name & Designation

IMPORTANT NOTE: *This Agreement becomes legally effective from the date it is signed (electronically) by both parties. Any modification shall be valid only if made signed by both parties. The Agent confirms having understood all terms and conditions, including the statutory references herein, before signing this Agreement. This document is governed by Indian law and is intended to be a genuine, legally binding instrument for the exclusive use of HandToHand Loans.*

-HandToHand Loans-

India's First AI-Powered Loan Eligibility Platform Use HandToHand Loans Smart AI Matching to Find Your Most Suitable Loan and from the Right Bank, Check Your Eligibility Before You Apply — Right Loan, Right Bank, Just One Click Away

HandToHand Loans — All Types Financial Services